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* **IN THE HIGH COURT OF DELHI AT NEW DELHI***Reserved on: 10th October, 2025**Pronounced on: 2nd December, 2025*+ **W.P.(C) 10686/2025 & CM APPL. 44163/2025 (Directions for Stay on the Operation of the Impugned Order)**

VEDANTA LIMITED

.....Petitioner

Through: Mr. Nidhesh Gupta with Mr. Prashanto Chandra Sen, Senior Advocates, Mr. Naveen Kumar, Mr. Bikram Dwivedi, Mr. Ujjwal Kumar Rai, Mr. Rohit Ghosh, Mr. Jimut Mohapatra, Mr. Utkarsh Chandra, Mr. Prabhat Kumar Rai, Mr. Aditya Goel and Mr. Lakshay Singh, Advocates.

versus

THE NOMINATED AUTHORITY MINISTRY OF COAL
GOVERNMENT OF INDIA & ORS.

.....Respondents

Through: Mr. Chetan Sharma, ASG with Mr. Ankur Mittal, CGSC with Mr. Aviraj Pandey, Ms. R. Jaiswal, Ms. Jutirani Talakdar, Advocates for UOI.

CORAM:
HON'BLE MR. JUSTICE AMIT SHARMA

JUDGMENT



AMIT SHARMA, J.

W.P.(C) 10686/2025

1. The present petition under Article 226 of the Constitution of India, 1950, has been filed seeking the following prayers: -

“In view of the foregoing facts and grounds, the Petitioner most respectfully prays that this Hon’ble Court may be pleased to:

(a) Allow the present Writ Petition and issue appropriate writ, order or directions to quash and set aside Impugned Order dated 21.07.2025 bearing file No. NA- 104/8/2020-NA (hereinafter referred as “**Impugned Order**”) issued by the Respondent No. 1 I.e., Nominated Authority, Ministry of Coal, Govt., of India; And/o

(b) Issue further appropriate orders or directions restraining the Respondent No. 1 to give effect to appropriation order dated 21.07.2025 bearing file No. NA- 104/8/2020-NA issued by the Respondent No. 1 I.e., Nominated Authority, Ministry of Coal, Govt., of India and refund any amount so appropriated; And/or

(c) Issue further appropriate writ, orders or directions directing the Respondent No. 1 to grant an extension of milestone deadlines under the Coal Mine Development and Production Agreement (CMDPA) dated 11.01.2021, executed in favour of the Petitioner with respect to the Radhikapur (West) Coal Mine situated in Angul district, Odisha in terms of the order dated 16.07.2025 filed by the Petitioner before the Respondent No. 1; And/or

(d) Issue further order or directions to the Respondents to process the applications of the Petitioner for grant of statutory clearances in a time bound manner; And/or

(e) Pass such other or further orders as this Hon’ble Court may deem just and proper in the facts and circumstances of the present case.

AND FOR THIS ACT OF KINDNESS, THE PETITIONER AS IN DUTY BOUND SHALL EVER PRAY.”



FACTUAL BACKGROUND

2. Brief facts necessary for the adjudication of the present petition, as stated by the petitioner in the present petition, are as under: -

i) On 18.06.2020, the Nominated Authority, Ministry of Coal, Government of India, (respondent No.1) issued the Tender Document for the 11th Tranche of Auction under the Coal Mines (Special Provisions) Act, 2015¹, for auctioning coal mines for commercial sale including Radhikarpur (West) Coal Mine, which was subsequently allotted to the petitioner. After conducting auction under the provisions of CM (SP) Act, 2015, and associated Rules, on 28.12.2020, the petitioner was declared '**successful bidder**' for the Radhikarpur (West) Coal Mine² by respondent No.1 in accordance with the directions issued by Govt. of India *vide* Office Memorandum dated 23.12.2020 and Rule 10 (10) of the CM (SP) Rules, 2014, pursuant to final offer of 21% of the revenue share for the Coal Mine submitted by the petitioner (**successful bidder**).

ii) On 11.01.2021, Coal Mine Development and Production Agreement (CMDPA) was executed between the President of India and the Petitioner formalising the obligations and milestones to be adhered to by the petitioner for operationalising the subject mine. After execution of CMDPA, on 03.03.2021, respondent No.1 under Rule

¹ Hereinafter referred to as "CM (SP) Act, 2015"

² Hereinafter referred to as "Subject Mine"



7(2)(b) and Rule 13(1) of the Coal Mines (Special Provisions) Rules, 2014 read with Section 6(3)(b) and Section 8(3) of the CM (SP) Act, 2015, issued a Vesting Order thereby, transferring all rights, title, interest including the approved mine plan to the petitioner, enabling it to undertake further steps toward development of the mine.

iii) On 17.02.2021, the petitioner submitted the Schedule-C Format of the completion notice in terms of Clause 3.2.1 of the CMPDA and furnished the 1st instalment of the upfront amount of Rs.24.76 Crores along with a Performance Bank Guarantee³ of Rs.263.17 Crores and a fixed amount of Rs.7.69 Crores in terms of the Tender Document. Further, on 05.04.2021, in furtherance of its obligations under CMDPA, petitioner submitted the commencement plan for starting coal mining operations at the allocated mine in terms of Clause 5.1 of the Tender Agreement. On 08.04.2021, petitioner made an application in Form-7 to the competent authority for transfer of the existing Environment Clearance (EC) in its name which was issued on 10.01.2014 in favour of prior allottee in terms of the Clauses 1 (c) & 1 (d) of the Vesting Order.

iv) On 19.07.2021, respondent No.1 issued an Office Memorandum granting relaxation in the timelines prescribed for achieving efficiency parameters under CMDPA, in view of the nationwide lockdown owing to the second wave of the COVID-19 pandemic. *Vide* this Office Memorandum, 3 months relaxation was given for achieving efficiency

³ Hereinafter referred to as 'PBG'



parameters in both operational as well as non-operational coal mine by respondent No.1. In the meanwhile, the request of the petitioner for transfer of Environment Clearance (EC) and Forest Clearance (FC) were forwarded to the Ministry of Environment, Forest and Climate Change (MoEF & CC) for necessary action. On 26.11.2021, Forest Advisory Committee (FAC) considered the proposal for transfer of Forest Clearance (FC-I) submitted by the petitioner, however, the same was deferred with direction for further inspection and clarifications.

v) On 07.12.2021, petitioner submitted a formal application before Director of Mines, Govt. of Odisha, for grant of mining lease over an area of 1048 hectares based on the vesting order issued by respondent No.1. On 17.12.2021, Divisional Forest Officer (DFO), Angul, along with DGIF(C), Bhubaneswar, and Range Officer, Chhendipada, conducted a field inspection of the proposed area and in the inspection report dated 17.12.2021, it was noted that the location of the mine falls within an area critical to elephant habitat and identified the site as a high human-elephant conflict zone.

vi) On 23.12.2021, FAC in its 2nd meeting, recommended grant of stage-I FC-I in favour of the petitioner, subject to certain conditions. On 21.01.2022, the petitioner submitted all requisite documents to the Office of the Director of Mines, Odisha, seeking further action for execution of the Mining Lease in accordance with vesting order. On 04.02.2022, in a meeting held between respondent No.1, Central Mine Planning & Design Institute Limited (CMPDI), petitioner and M/s



EMMRL, issues arose regarding three different boundary coordinates viz., Mining Plan, Vesting Order, recommendations of CMPDI.

vii) On 08.02.2022, petitioner received 1st Show Cause Notice (SCN-I) for non-compliance of Milestone-2 (MS-2) pertaining to the submission and approval of mining plan and on the same day, the Nominated Authority issued a letter correcting the boundary coordinates and directed revision based on Odisha Space Application Centre (ORSAC) data. On 09.02.2022, petitioner wrote to CMPDI informing them about revision of boundary coordinates for the subject mine.

viii) On 21.02.2022, petitioner submitted its reply to SCN-I, citing reasons including delays due to the COVID-19 pandemic and issues with mine boundary coordinates. The explanation given by the petitioner was accepted and SCN-I was dropped against the petitioner based on the recommendation of Scrutiny Committee in its 18th meeting held on 23.08.2022 for providing relaxation by not appropriating Performance Bank Guarantee for non-compliance with the milestone (MS-2) and same was communicated to the petitioner by respondent No.1 *vide* letter dated 18.01.2023.

ix) On 06.01.2022, MoEF & CC issued in-principle approval of stage-I Forest Clearance and in view of the same petitioner applied for grant of EC in its name. However, MoEF & CC raised Essential Details Sought (EDS) on 10.01.2022 and directed the petitioner to apply afresh



remedy under Section 27 of CM (SP) Act, 2015, and is binding on this Court. The issues raised by the petitioner in the present case have been disputed by the respondents. The contentions raised by the petitioner pertains to disputed questions of fact in respect of provisions of CMPDA over which learned Tribunal established under Section 27 of the CM (SP) Act, 2015, has jurisdiction/authority to adjudicate upon. Even otherwise, said disputed facts cannot be decided by this Court in the present jurisdiction.

17. Reliance has been placed by learned Senior Counsels for the petitioner on **Whirlpool Corpn. v. Registrar of Trade Marks**¹⁹, **S.J.S. Business Enterprises (P) Ltd. v. State of Bihar**²⁰, **Union of India v. Tania Construction (P) Ltd.**²¹, **T.N. Cements Corpn. Ltd. v. Unicon Engineers**²², **India Glycols Ltd. v. S.R. Technologies**²³, to contend that the existence of an adequate or suitable alternative remedy available to the litigant is merely a factor which the Court entertaining a petition under Article 226 of the Constitution will consider for exercising the discretion to issue writ in said jurisdiction; however, the same does not impinge upon the jurisdiction of the High Court to deal with the matter itself when it is in position to do so on the basis of the affidavits filed. The aforesaid legal position is not disputed; however, the present case is squarely covered by the decision of learned Division Bench in **Trimula Industries Limited (supra)**.

¹⁹ (1998) 8 SCC 1, particularly on paragraphs 14 & 15 at page 9

²⁰ (2004) 7 SCC 166

²¹ (2011) 5 SCC 697; (2011) 3 SCC (Civ) 117 at page 708

²² (2025) 4 SCC 1: SCC OnLine SC 127 at page 14

²³ (2025) 5 SCC 780



18. Similarly, reliance placed by learned Senior Counsels for the petitioner on order dated 20.06.2025 passed by Coordinate Bench in **W.P.(C) 8484/2025** titled as “**M/s JSW Cement Limited v. Union of India & Ors.**” will not benefit the petitioner, in view of the aforesaid judgment of the learned Division Bench of this Court in **Trimula Industries Limited (supra)** which pertains to Section 27 of the CM (SP) Act, 2015, and is binding on this Court.

19. In view of the aforesaid discussion and in facts and circumstances of the present case, the present petition is disposed of with liberty to the petitioner to avail its alternate efficacious remedy in accordance with Section 27 of the CM (SP) Act, 2015, before the concerned learned Tribunal situated at Talchar, Odisha, within a period of 10 days from today.

20. It is further directed, till that time, interim order dated 23.07.2025 passed by this Court directing maintenance of *status quo* with respect to Performance Bank Guarantee No. 1637622BG0000209 dated 15.06.2022 (amended on 25.09.2025) shall continue to operate. It is clarified that this extension of interim order is for ten days or till the time the petitioner approaches learned Tribunal under the aforesaid provision, whichever is earlier. It is further directed that the Bank Guarantee should be kept alive.

21. Needless to state that, nothing stated hereinabove, should be construed as an expression of opinion (*prima facie* or otherwise) as to the merits of the dispute. All rights and contentions of the parties are reserved.

22. Pending applications, if any, also stand disposed of accordingly.



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23. Judgment be uploaded on the website of this Court, *forthwith*.

AMIT SHARMA
(JUDGE)

DECEMBER 02, 2025/bsr/ns